

1965 No. 1

A MEASURE passed by the National Assembly of the Church of England to authorise the use by way of experiment of alternative forms of Service deviating from the Book of Common Prayer and the use of forms of Service for use on special occasions; and to authorise minor variations in public prayer and for purposes connected therewith. [23rd March 1965]

1.—(1) In the case of any of the forms of Service prescribed by the Book of Common Prayer it shall be lawful to use in any Cathedral or Church, or other place where the form of Service may be used, in accordance with the provisions of this Measure, such form or forms of Service alternative to the form of Service so prescribed, and deviating (whether by way of addition, omission, substitution or otherwise) from the form of Service so prescribed, as may be approved by the Convocations of Canterbury and York for experimental use, every such form of Service being in their opinion neither contrary to, nor indicative of any departure from, the doctrine of the Church of England.

(2) An approval of a form of Service given under this section shall be required for each form of Service and shall not have effect for the purposes of this section unless the form of Service is approved by both Convocations in the same terms with a majority in each House of each Convocation of not less than two-thirds of those present and voting, and is agreed to by the House of Laity with a majority of not less than two-thirds of those present and voting.

(3) An alternative form of Service approved under this section may be used only during the period stated in the approval which period shall not exceed seven years from the date of the approval:

Provided that:—

- (a) if a majority of not less than two-thirds of those present and voting in each House of each Convocation and in the House of Laity so resolve the aforesaid period may from time to time be extended or renewed for further periods to be stated in the resolution not exceeding in the case of any one period seven years ;

(b) no period for which a form of Service alternative to the form of Service prescribed by the Book of Common Prayer is approved under this section shall continue beyond the expiry of fourteen years from the date of the coming into effect of the first approval of a form of Service alternative to the form of Service so prescribed.

(4) An approval of a form of Service given under this section may be revoked or an approved form of Service may be varied or replaced by another form of Service alternative to the same form of Service prescribed by the Book of Common Prayer in the same manner, and subject to the same conditions, as applied to the original approval, but no such variation or replacement shall extend the period during which the form of Service may be used as prescribed by the foregoing provisions of this section.

Preliminary
trial of
draft forms
of Service.

2.—(1) For the purpose of giving a preliminary trial to a form of Service which is under consideration by the Convocations of Canterbury and York with a view to approval being given thereto under section one of this Measure, a draft of the said form of Service, approved by the Convocations of Canterbury and York, may, subject to the provisions of this Measure, be used for a period or periods of trial—

(a) in any Cathedral with the approval of the Dean and Chapter or the Cathedral Chapter, as the case may be ;
and

(b) subject to the control and supervision of the Bishop of the Diocese in such Church or Churches or other place or places where the relevant form of Service prescribed by the Book of Common Prayer may be used as he may arrange with the approval in each case of the incumbent of the benefice.

(2) In the case of any of the forms of Service prescribed by the Book of Common Prayer, a draft approved under this section may be used either before or after the first approval under section one of this Measure of a form of Service alternative to the form of Service to which that draft relates, but shall not be used after the expiry of any of the following periods:—

(i) two years from the date of the first use of that draft ;

(ii) sixteen years from the date of the first use of the first draft approved under this section relating to that form of Service ;

(iii) fourteen years from the date of the first approval under section one of this Measure of a form of Service alternative to the form of Service to which the draft relates.

(3) The Convocations of Canterbury and York may revoke the approval of any draft form of Service or may vary or replace an approved draft form of Service but not so as to extend the period or periods of trial authorised by the foregoing provisions of this section.

3. A form or draft of a form of Service approved under either section one or section two of this Measure may not be used in any Cathedral which is a parish church or in any Church in a parish without the agreement of the Parochial Church Council of the parish or in any Guild Church without the agreement of the Guild Church Council, or in the case of Services known as Occasional Offices if any of the persons concerned objects beforehand to its use.

Consent of
Parochial
Church
Council
and others
concerned.

4.—(1) It shall be lawful to use in any Cathedral or Church or elsewhere forms of Service approved by the Convocations of Canterbury and York for use within their respective provinces on occasions for which no provision is made in the Book of Common Prayer, being forms of Service which in both words and order are in their opinion reverent and seemly and neither contrary to, nor indicative of any departure from, the doctrine of the Church of England.

Forms of
Service
approved by
Convocations
or Ordinary
for use on
occasions
not provided
for in Prayer
Book.

(2) It shall be lawful to use in any Cathedral or Church or elsewhere forms of Service which, subject to any regulations made from time to time by the Convocation of the Province, may be approved by the Ordinary for use to meet circumstances for which no provision is made in the Book of Common Prayer or by the Convocations under sub-section (1) of this section, being forms of Service which in the opinion of the Ordinary in both words and order are reverent and seemly and are neither contrary to, nor indicative of any departure from, the doctrines of the Church of England.

5. Subject to the provisions of this Measure the Minister may in his discretion make and use variations which are not of substantial importance in any form of Service prescribed by the Book of Common Prayer or authorised for use under this Measure according to particular circumstances.

Minor
variations in
the conduct
of public
prayer.

6. Subject to the provisions of this Measure and to any regulations made from time to time by the Convocation of the Province, the Minister may on occasions for which no provision is made in the Book of Common Prayer or under section four of this Measure use forms of Service considered suitable by him for those occasions.

Forms of
Service for
use on
occasions
not other-
wise
provided for.

Provisions
applicable to
Services
authorised
by section 5
or 6 of this
Measure.

7.—(1) All forms of Service and all variations in forms of Service used or made under the provisions of section five or six of this Measure shall be reverent and seemly and shall be neither contrary to, nor indicative of any departure from, the doctrine of the Church of England.

(2) If any question is raised concerning the observance of the provisions of the foregoing sub-section or whether a variation in a form of Service is of substantial importance or not it may be referred to the Bishop in order that he may give such pastoral guidance and advice as he may think fit, but such reference shall be without prejudice to the matter in question being made the subject matter of proceedings under the Ecclesiastical Jurisdiction Measure 1963.

1963 No. 1.

Use of Services
authorised by this
Measure deemed
to be ordered by
lawful authority.

8. The forms of Service which are authorised by this Measure or which are authorised or enjoined by the exercise of the powers or authorities set out in section ten of this Measure shall be the forms of Service which are ordered by lawful authority within the meaning of the Clerical Subscription Act 1865.

1865 c. 122.

Interpre-
tation.

9. In the Measure, except in so far as the context otherwise requires,—

1662 c. 4.

“Book of Common Prayer” means the Book annexed to the Act of Uniformity 1662 and entitled “The Book of Common Prayer and Administration of the Sacraments and other Rites and Ceremonies of the Church according to the use of the Church of England together with the Psalter or Psalms of David pointed as they are to be sung or said in Churches and the Form and Manner of Making Ordaining and Consecrating Bishops Priests and Deacons”;

“Cathedral” means a Cathedral or Collegiate Church in which the Book of Common Prayer is required by the Act of Uniformity 1662 to be used;

“Church” means any Parish Church, Chapel or other place of public worship which is not a Cathedral and in which the Book of Common Prayer is required by the Act of Uniformity 1662 to be used;

“Guild Church” means a church in the City of London designated and established as a Guild Church under the City of London (Guild Churches) Acts 1952 and 1960.

Savings.

10. Nothing in this Measure shall prejudice or limit—

(a) the use of any form of Service from time to time enjoined or authorised by any enactment or by Order in Council, Royal Warrant or Royal Proclamation; or

- (b) the powers of the Bishop and the Archbishop respectively to appease diversity and resolve doubts pursuant to the provision in the Book of Common Prayer entitled "Concerning the Service of the Church".

11.—(1) This Measure shall come into operation on such Commence-
day as the Archbishops of Canterbury and York shall jointly ment and
determine, and their determination of that day shall be notified extent.
in the London Gazette.

(2) This Measure shall extend to the whole of the provinces
of Canterbury and York except for the Channel Islands:

Provided that this Measure may be applied to the Channel
Islands as defined in the Channel Islands (Church Legislation)
Measures 1931 and 1957, or either of them, in accordance with
those Measures.

12. This Measure may be cited as the Prayer Book (Alterna- Short title.
tive and Other Services) Measure 1965.